

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #16	CCRB Case #: 201508342	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/16/2015 10:48 PM	Location of Incident: [REDACTED]	Precinct: 50	18 Mo. SOL 3/16/2017	EO SOL 3/16/2017	
Date/Time CV Reported Wed, 09/23/2015 1:00 AM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Thu, 10/01/2015 10:34 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Santosuosso	01817	951210	050 PCT
2. POM Viet Dang	19610	951653	050 PCT
3. POM Ross Yuengst	13761	951457	050 PCT
4. POM Michael Best	11744	948666	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andrew Greges	28881	949061	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Thomas Santosuosso	Abuse: At § 87(2)(b) PO Thomas Santosuosso stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
B.POM Viet Dang	Abuse: At § 87(2)(b) PO Viet Dang stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
C.POM Ross Yuengst	Abuse: At § 87(2)(b) PO Ross Yuengst stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
D.POM Viet Dang	Abuse: At § 87(2)(b) PO Viet Dang searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
E.POM Ross Yuengst	Abuse: At § 87(2)(b) PO Ross Yuengst searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
F.POM Michael Best	Discourtesy: At § 87(2)(b) PO Michael Best spoke discourteously to § 87(2)(b)	[REDACTED]
G.POM Viet Dang	Discourtesy: At the 50th Precinct stationhouse, PO Viet Dang spoke discourteously to § 87(2)(b)	[REDACTED]
§ 87(4-b), § 87(2)(g)	[REDACTED]	[REDACTED]

Case Summary

On September 16, 2015, at approximately 10:48 p.m., at 180 Van Cortlandt Park West in the Bronx, § 87(2)(b) and § 87(2)(b) were arrested by officers from the 50th Precinct with § 87(2)(b).

§ 87(2)(b) The following was alleged: PO Thomas Santosuosso, PO Viet Dang and PO Ross Yuengst stopped the car occupied by § 87(2)(b) and § 87(2)(b) (Allegation A through C), and PO Dang searched the car (Allegation D) and spoke discourteously to § 87(2)(b) (Allegation E). At the 50th Precinct stationhouse, PO Michael Best spoke discourteously to § 87(2)(b) (Allegation F).

§ 87(4-b) § 87(2)(g)

No video footage from the incident could be obtained.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- The arrests of § 87(2)(b) (Board Review 01) and § 87(2)(b) (Board Review 02) rendered this case ineligible for mediation.
- This report was submitted pending the results of a FOIL request, sent on December 30, 2015, for any notice of claim filed in regard to the incident (Board Review 03).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by and involving § 87(2)(b) (Board Review 08).
- § 87(2)(b) was named as a victim in § 87(2)(b)
- PO Santosuosso has been a member of service for four years and this is the first CCRB complaint filed against him.
- PO Dang has been a member of service for three years and has five CCRB allegations pleaded against him in four other cases. None of these allegations were substantiated § 87(2)(g)
- PO Yuengst has been a member of service for four years and this is the first CCRB complaint filed against him.
- PO Michael Best has been a member of service for five years and has had 37 CCRB allegations pleaded against him in 19 other cases. None of these allegations were substantiated. Since 2011, four other discourtesy allegations have been pleaded against him that were closed as victim uncooperative (CCRB 201110094), mediated (CCRB 201115914),

unsubstantiated (CCRB 201200575) and complainant uncooperative (CCRB 201504431).

Potential Issues

§ 87(2)(b) (Board Review 14) said that he took video footage on his phone during the incident. However, he was unresponsive to numerous attempts to retrieve this video, would not agree to meet the undersigned investigator in the field and disregarded a subpoena mailed to him for the footage (Board Review 15). § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) (Board Review 16) alleged that the officer who drove the patrol vehicle in which he was transported to the stationhouse spoke discourteously to him. Although PO Best (Board Review 20) denied speaking discourteously to § 87(2)(b) it is undisputed that PO Best drove the patrol vehicle in which § 87(2)(b) was transported. § 87(2)(g)

Allegation A – Abuse of Authority: At § 87(2)(b) PO Thomas Santosuosso stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: At § 87(2)(b) PO Viet Dang stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C – Abuse of Authority: At § 87(2)(b) PO Ross Yuengst stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b)'s vehicle was double parked when the officers encountered it. While § 87(2)(b) (Board Review 14), the driver, and § 87(2)(b) (Board Review 16), the front passenger, believed they were primarily stopped because the officers recognized § 87(2)(b) from a previous arrest, § 87(2)(b) acknowledged that the car was double parked.

An officer may conduct a stop of an individual when the officer has probable cause to believe that individual committed a crime or offense in his presence, People v. De Bour, 386 N.Y.S.2d (1976) (Board Review 21).

§ 87(2)(g)

Allegation D – Abuse of Authority: At § 87(2)(b) PO Viet Dang searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation E – Abuse of Authority: At § 87(2)(b) PO Ross Yuengst searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that the vehicle occupied by § 87(2)(b) (Board Review 14) and § 87(2)(b) (Board Review 16) was searched. § 87(2)(b) alleged that only PO Dang searched the vehicle while § 87(2)(b) alleged that PO Dang and PO Yuengst searched the vehicle. PO Dang (Board Review 17) and PO Santosuosso (Board Review 18) both testified that only PO Dang searched the vehicle, and PO Yuengst (Board Review 19) denied searching the vehicle and could not recall who did.

While § 87(2)(b) and § 87(2)(b) alleged that the vehicle was searched for no reason, § 87(2)(b) acknowledged that he had marihuana inside the glove compartment, which is a reason PO Dang gave for searching the car.

PO Dang said that when he stood at the front passenger's door and when the driver's window was cracked open three to four inches, he smelled a strong odor of vegetative marihuana emanating from the vehicle. PO Dang used his flashlight to look in the vehicle and also observed marihuana crumbs, described as stems and small bits of marihuana, on the floor mat in the backseats. Once the passengers exited the vehicle, PO Dang searched the vehicle because he

smelled and saw marihuana, and for no other reasons. PO Dang first went and looked under the backseats where he saw the crumbs, which he confirmed to be marihuana by their feel and smell. PO Dang then went to the passenger's side, from where the smell of marihuana was distinctly emanating. PO Dang smelled marihuana coming from the glove compartment and as he placed his nose closer, the smell became stronger. PO Dang opened the glove compartment after retrieving the key from § 87(2)(b) and found two large bags of marihuana in the glove compartment.

PO Santosuosso said that when he stood at the driver's door and the driver's window was cracked three to four inches, he instantly smelled marihuana that seemed to have just been smoked. PO Santosuosso said that he also saw bits of marihuana in the car, but only on the front driver's seat floor and not on the backseat floor. PO Yuengst (Board Review 19) said that he smelled marihuana, but could not recall if any of the vehicle windows were rolled down at the time.

Voucher § 87(2)(b) listed 16 bags of marihuana as arrest evidence for § 87(2)(b) and § 87(2)(b) (Board Review 22).

The smell of marihuana alone sufficiently provides officers with probable cause to search a vehicle and its occupants, People v. Johnson, 901 N.Y.S.2d 909 (2009) (Board Review 25).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation F – Discourtesy: At § 87(2)(b) PO Michael Best spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 16) testified that after the search of the car, PO Best arrived and handcuffed him. § 87(2)(b) said, “Why are you locking me up for? Can I ask?” PO Best said, “No. Shut the fuck up.” After PO Best placed § 87(2)(b) inside his unmarked vehicle, § 87(2)(b) asked again about what charges he would receive. PO Best said, “I don’t have to tell you shit,” and “I’m not telling you shit.” § 87(2)(b) (Board Review 14) did not make these allegations.

PO Best (Board Review 20) denied making these statements. No other interviewed officer including PO Andrew Gregees (Board Review 23), who was in the patrol vehicle with PO Best and § 87(2)(b) acknowledged hearing them.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation G – Discourtesy: At the 50th Precinct stationhouse, PO Viet Dang spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 14) testified that at the stationhouse, PO Dang asked § 87(2)(b) who the vehicle belonged to and § 87(2)(b) answered that it belonged to his mother. PO Dang said, “Oh, then you’re a real douchebag. She’s going to be really upset when I impound it when I voucher it.” § 87(2)(b) (Board Review 16) did not allege this.

PO Dang (Board Review 17) denied calling § 87(2)(b) a “douchebag” for any reason and no interviewed officer acknowledged hearing PO Dang say this.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) [Redacted]
[Redacted]

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
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[Redacted]
[Redacted]

Pod: 16

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date